

Neutral Citations

2025 CGHC 22394

Equivalent Citations

citation codes .

RAMKRIPAL SAHU v. STATE OF CHHATTISGARH

Chhattisgarh High Court (May 27, 2025)

CASE NO.

MCRC/4083/2025

DISPOSITION

ALLOWED

ATTORNEY

(MCRC No. 4083 of 2025)

2025:CGHC:22394

NAFR

HIGH COURT OF CHHATTISGARH AT BILASPUR

MCRC No. 4083 of 2025

1 - Ramkripal Sahu S/o Devram Sahu Aged About 35 Years R/o Indirawati Nagar Kohka, Thana Supela Bhilai, District Durg (C.G.) --- Applicant(s)

versus

1 - State Of Chhattisgarh Through Police Station Range Cyber, Bilaspur District- Bilaspur (C.G.)

--- Non-applicant(s)

(Cause title taken from the Case Information System) For Applicant : Mr. Utsav Mahiswar, Advocate For Non-applicant/State : Mr. Pramod Shrivastava, Dy. GA

Hon'ble Shri Ramesh Sinha, Chief Justice**Order on Board**

27.05.2025

1. This is the **First bail application** filed under Section 483 of the Bhartiya Nagrik Suraksha Sanhita, 2023 for grant of regular bail to the applicant who has been arrested in connection with Crime No. 05 of 2025 registered at Police Station : Cyber Police Station Range Bilaspur, District- Bilaspur, (C.G.) for the offence punishable under Sections 318(4), 3(5) and 111 of Bharatiya Nyaya Sanhita, 2023.

2. The case of the prosecution, in a nutshell, is that between 05.01.2025 and 27.01.2025, the complainant, Shyam Sundar

Prasad, received calls and messages by ² two individuals, Arun and Heri Singh, to invest in B-5 share trading, assuring him that he would earn three times the invested amount, and was defrauded online of Rs. 14.25 lakhs. On enquiry, it was found that the applicant along with other co-accused were luring people to invest money in any share trading company and committing online *fraud* .

3. It has been argued by learned counsel for the applicant that the similarly placed other co-accused namely, Jitendra Agrawal has already been granted bail by this Court vide order dated 05.05.2025 passed in MCRC No. 2299/2025. Therefore, on the ground of parity, the applicant herein may also be granted bail. It is further submitted that the applicant is innocent and has been falsely implicated in the present case. He further submits that the applicant is in jail since 23.02.2025 and the conclusion of trial will take some time, therefore, he prays that the applicant be enlarged on bail.

4. Learned State counsel opposes the bail application and submits that the applicant has committed *fraud* by taking money amounting to Rs. 14.25 lakhs from the complainant with promises of high returns and failed to return the money to the complainant. He further submits that the charge-sheet has been filed in this matter and there are already two criminal antecedents of identical nature of the years 2023 & 2024

against the applicant, as such, he does not deserve to be released on bail at this juncture.

5. I have heard learned counsel for the parties and perused the case diary.

6. Considering the facts and circumstances of the case, nature and gravity of offence and also considering the fact that the other co-accused namely, Jitendra Agrawal who has been granted bail by this Court vide order dated 05.05.2025 passed in MCRC No. 2299/2025 had no criminal antecedents, whereas the present applicant already has two pending criminal antecedents of similar nature relating to online *fraud* of the years 2023 & 2024 against him, as such, I am not inclined to allow this bail application.

7. Accordingly, the bail application of the applicant - **RamkripalSahu**, filed under Section 483 of Bhartiya Nagrik Suraksha Sanhita, 2023, involved in Crime No. 05 of 2025 registered at Police Station : Cyber Police Station Range Bilaspur, District-Bilaspur, (C.G.) for the offence punishable under Sections 318(4), 3(5) and 111 of Bharatiya Nyaya Sanhita, 2023, is

rejected.

8. Office is directed to send a certified copy of this order to the concerned trial Court for necessary information. -

Sd/- (Ramesh Sinha) Chief Justice

@d!t!